

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DAVID SIU-KUNG MA,

Petitioner

VS.

JENNIFER RAMIREZ,

Respondent

) Case Number: FMS-25-387578

) Hearing Date: September 24, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER ATTORNEY FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner David Siu-Kung Ma (Father) and Respondent Jennifer Ramirez (Mother). The parties have one minor child: Liliana (DOB: 02/26/24).
- 2) At the prior 12/30/2025 hearing (Findings and Order After Hearing filed 7/2/2026), the Court ordered Mother to pay Father \$382 in monthly guideline child support in accordance with the XSpouse calculation attached to her Statement of Support Calculation filed 12/19/25. The Court notes that the XSpouse calculation shows that after Father pays Mother \$382 per month, Father will have 47% of the parties' combined net spendable income and Mother will have 53% of the parties' combined net spendable income.
- 3) Now on for hearing is Mother's Request for Order filed 8/7/26 seeking \$150,000 in need-based attorney's fees plus \$10,000 to retain a child development expert under Family Code 7605. Mother states she needs fees to cover \$92,589.50 in attorney fees and costs already incurred, \$47,410.50 for reasonably anticipated attorney's fees and costs to litigate the remaining issues in this case, and \$10,000 to retain a child development expert. Mother asserts Father has filed

multiple RFOs in this matter without any “new facts or law.” Mother further explains that Father has “propounded excessive and overburdensome discovery...”. Mother states she has exhausted her financial resources while Father has sufficient access to resources (e.g., investments, savings, and real property) and can afford to pay Mother’s attorney’s fees.

4) Attached to Mother’s Request for Order is a declaration by her attorney Adam Taylor. Mr. Taylor asserts the majority of Mother’s attorney’s fees incurred are in response to RFOs filed by Father and drafting discovery responses. Mr. Taylor’s billing rate is \$650 per hour and Paralegal, Darlene’s rate is \$325 per hour. Mr. Taylor has worked as a family law attorney for over 28 years whereas Darlene has worked in family law for 20 years. He provides that his billing rate “is commensurate with the billing rates for attorneys of similar skills and experience...”. He estimates \$133,575 for future costs incurred related to this matter. Additionally, Mr. Taylor provides that Mother has not initiated unreasonable litigation costs or propounded any discovery that was not directly related to the case.

5) On 8/7/26, Mother filed an Income and Expense Declaration. She is 30 years old and is employed by the United States Postal Service. Mother works 40 hours per week and earns on average \$7,546 per month. Mother reports earning average monthly overtime of \$1,136. Mother states she has \$29 in cash savings and no other assets. Mother states her estimated and actual monthly expenses total \$5,389. Mother state she has paid \$92,590 in attorney’s fees to date using savings and owes \$0.

6) On 8/19/26, Father filed a Responsive Declaration asking the Court to deny all of Mother’s requested relief. Father states there is no income disparity. Father asserts that the request to pay Mother’s attorneys fees is neither reasonable nor necessary. Lastly, Father states Mother has failed to identify why an expert is warranted.

7) On 8/19/26, Father filed an Income and Expense Declaration. Father is 37 years old and is employed by the United States Postal Service. Father works 40 hours per week and earns an average of \$8,071.68 per month. Father receives other income from “Sunday Premium” in the amount of \$373.19 on average per month. Father states he has \$242,718 in cash savings, \$42,480 in easily saleable investments, and personal property of \$53,000. Father’s total monthly expenses amount to \$3,192, of which \$757 is “paid by others.” Apart from paying \$410 per month for real

1 property taxes, \$300 per month for homeowner's insurance, and \$300 per month for maintenance
2 and repair, Father states that he has no housing expenses. Father states he has paid his attorney
3 \$19,280.25 in attorney's fees to date from his personal savings and owes \$0.

- 4 8) On 8/19/2026, Father filed a Memorandum of Points and Authorities. Father asserts that a request
5 for attorney fees does not warrant an automatic reimbursement of fees based on a disparity in
6 assets. Father contends the Court should examine Mother's billing records and determine whether
7 the amount requested is reasonably necessary. Mother's attorney's fees currently paid
8 (\$92,589.50) pose a five-fold disparity to Father's attorney's fees currently paid (\$19,280.25).
9 Father maintains that while his assets are relevant, they do not establish that Mother's requested
10 amount is appropriate, as Mother overstates residential assets available to Father. Father owns the
11 residence in question as tenants in common; therefore, only Father's ownership interest belongs
12 to him. Father asserts that anticipated future attorney fees require a particularized showing of
13 necessity rather than merely an estimate. Lastly, Father argues that Mother's separate request that
14 he advance \$10,000 for a child development expert should be "denied absent a more particular
15 showing of reasonable necessity."
- 16 9) On 8/19/2026, Father's attorney filed a declaration. Father asserts Mother previously sought
17 attorney fees to which the court denied (due to failure to plead requisite facts). Additionally, the
18 fee requested by Mother are not reasonable or necessary. Father states that Mother
19 mischaracterizes his financial circumstances as Mother and Father earn similar incomes. Father
20 states that Mother has contributed to the cost and duration of the current litigation as Mother's
21 own billing records provide that fees were incurred through contested litigation of both parties.
- 22 10) On 9/16/2026, Mother filed a Reply Declaration. Mother asserts that Father maintains
23 unencumbered personal property (i.e., \$242,718 in cash, \$42,480 in stocks, \$53,000 in other
24 personal property) while living with zero debt, mortgage, and no vehicle financing. Thus,
25 demonstrating a total net worth disparity. Mother further asserts Father's lower legal bills are
26 attributable to frequently being the moving party throughout litigation. Lastly, Mother asserts that
27 a child development assessment is crucial for Mother's and Father's daughter, Liliana. Mother
28 has observed Liliana suffer severe emotional distress and difficulty adjusting to the current
29 custody schedule.

1 **B. Findings and Order**

- 2 1) The Court finds there is a disparity in access to funds to pay legal fees and that Father has the
3 ability to pay for his own attorney's fees in addition to those of Mother. The Court hereby awards
4 to Mother \$20,000 for attorney's fees and costs incurred to date and through entry of stipulated
5 Judgment, if the parties are able to enter into a stipulated Judgment. The Court's jurisdiction to
6 award additional attorney's fees and costs to Mother if this case is eventually set for trial is
7 reserved.
- 8 2) Mother's request for an additional \$10,000 to retain a child development expert is DENIED
9 without prejudice to a future request. The Court does not find that it is necessary for Mother to
10 retain a child development expert in this case at this time.
- 11 3) Mother's attorney shall prepare the Findings and Order After Hearing.
- 12 4) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
13 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
14 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
15 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
16 proposed order after hearing directly to the court. Failure to submit the order after hearing within
17 10 days may allow the other party to prepare a proposed order and submit it to the court in
18 accordance with CA Rules of Court, Rule 5.125(d).
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